

Smt. Santosh Kumari v. State of U.P. And 3 Others

Allahabad High Court · Division Bench · 15 July 2022 · Writ - C No. 12723 of 2022 · **Writ petition disposed of; petitioner may file a fresh objection within two weeks with proof of deposit of Rs. 1,00,000; Executive Engineer to decide after hearing within four weeks; the 31.10.2020 demand shall abide that order; recovery may proceed if the objection and deposit are not filed**

HEADNOTE

Where a consumer, after being relegated to Clause 6.5 of the U.P. Electricity Supply Code, 2005 and after a prior writ quashing a later demand because those objections had not been decided, challenges an Executive Engineer's order that disposes of a further application by an ex-parte demand, and that order merely comments 'Sweekar Nahi hai' or 'Sambandhit Nahi hai' and decides other points vaguely, the writ court will treat it as not a valid consideration of the objections. The consumer is permitted to file a fresh objection within two weeks with proof of deposit of Rs. 1,00,000 towards dues; if so filed, the Executive Engineer shall decide it in accordance with law within four weeks after a reasonable opportunity of hearing. The impugned order shall abide that fresh decision. If the objection and deposit are not filed in time, the licensee may recover on the impugned order. The Court did not quash the demand or decide the quantum of dues.

FACTUAL SUMMARY

Smt. Santosh Kumari of Budaun challenged Madhyanchal Vidyut Vitran Nigam Ltd.'s ex-parte demand dated 31 October 2020 for Rs. 2,71,884 and sought a direction to decide her objection dated 12 November 2020. Her connection had been disconnected on 24 January 2008; a later demand of Rs. 3,79,636 led to Writ-C No. 34740 of 2018, dismissed on 30 October 2018 with liberty to object under Clause 6.5 of the U.P. Electricity Supply Code, 2005. A further demand of 12/15 December 2018 was quashed in Writ-C No. 1950 of 2019 on 31 January 2019 because those objections had not been decided. Contempt Application (Civil) No. 4103 of 2019 was disposed of on 11 July 2019 with liberty to move a fresh application. She applied on 22 July 2020; the Executive Engineer disposed of it by the impugned 31 October 2020 order during the Covid-19 pandemic.

REUSABLE CONSTRUCTIONS

1. A Clause 6.5 disposal that merely comments 'not accepted' or 'not related' (or equivalent formulaic recitals) without considering the consumer's objections is not a valid order. ¶ 6
2. Where a Clause 6.5 order is not a valid consideration of objections, the writ court may permit a fresh objection to be decided after hearing, directing that the impugned order shall abide that decision; default in filing the directed objection leaves the licensee free to recover on the existing demand. ¶ 7-10

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

A Clause 6.5 order that merely recites 'not accepted' or 'not related' without considering objections is not valid; fresh objection after hearing, demand to abide

QUESTION

Does an Executive Engineer's Clause 6.5 disposal that merely comments 'not accepted' or 'not related', without considering the consumer's objections, constitute a valid order?

HOLDING

No. Perusal of the 31.10.2020 order left no manner of doubt that respondent no. 3 had passed it without considering the petitioner's objection, merely commenting 'Sweekar Nahi hai' or 'Sambandhit Nahi hai', and had decided other points vaguely. Prima facie the order could not be said to be a valid order. The Court permitted a fresh objection within two weeks with proof of deposit of Rs. 1,00,000 towards dues; if filed, the Executive Engineer is to decide it in accordance with law within four weeks after a reasonable opportunity of

hearing. The impugned order shall abide that fresh order. If the objection and deposit are not filed in time, the respondents may proceed with recovery pursuant to the impugned order. The writ petition was disposed of. ¶ 6-11

QUALIFIER

The 31.10.2020 demand was not quashed. Quantum of Rs. 2,71,884 was not decided.

FLAG Unnumbered order; paras are sequential blocks after the cause-title (1 heard; 2 reliefs; 3 quoted 30.10.2018 dismissal in Writ-C No. 34740 of 2018; 4 quoted 31.1.2019 allowance in Writ-C No. 1950 of 2019; 5 contempt and the 22.7.2020 application; 6 validity; 7-10 directions; 11 disposed). This 15.7.2022 order does not itself number Clause 6.5; the quoted 2018 order refers to 'part 6.5' and the quoted 2019 order to 'Clause 6.5 of the Electricity Supply Code, 2005'. Keyed to UP-2005::6.5 as the billing-objection path of the entire proceeding.

PRINCIPLE TAGS

assessment-must-engage-objections-with-reasons The 31.10.2020 order merely commented 'Sweekar Nahi hai' or 'Sambandhit Nahi hai' and decided other points vaguely. The Court held it was passed without considering the objection and was not a valid order. ¶ 6

billing-objection-to-executive-engineer-under-6.5 After earlier writs had already sent this consumer to Clause 6.5, the Court again remitted a fresh objection to the Executive Engineer (respondent no. 3) to be decided after hearing, without examining the Rs. 2,71,884 demand on merits. ¶ 3-4, 7-8

clause-6.5-representation-executive-engineer The petitioner was permitted to submit a fresh objection to respondent no. 3 within two weeks with proof of deposit of Rs. 1,00,000; that officer is to decide it in accordance with law within four weeks after a reasonable opportunity of hearing. ¶ 7-8

apply-under-supply-code-consider-in-accordance-with-law The demand was not quashed. The impugned order shall abide the fresh decision; if the directed objection and deposit are not filed, recovery may proceed on the existing demand. ¶ 8-10

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OR QUANTUM OF THE DEMAND OF RS. 2,71,884 DATED 31.10.2020
Left to the Executive Engineer on the fresh objection; the demand was not quashed and shall abide that order. ¶ 6-9

NOT DECIDED — WHETHER THE PETITIONER'S OBJECTION DATED 12.11.2020 HAD ITSELF TO BE DECIDED, AND THE MERITS OF THE GRIEVANCE THAT SUPPLY HAD BEEN DISCONNECTED SINCE 24.01.2008
The Court directed a fresh objection rather than mandamus to decide the 12.11.2020 representation, and did not examine the disconnection-since-2008 case. ¶ 2, 7-8